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Case Number: 25NWCV03072 Hearing Date: July 21, 2026 Dept: L

Plaintiff Janet Vega

Castillo's Motion to Compel Further Responses to Requests for Production, Set One, is GRANTED.

Plaintiff to give notice.

Background

This is a personal injury action involving an accident that occurred on January 21, 2025. On August 27, 2025, Plaintiff Janet Vega Castillo ("Plaintiff") filed this action against Defendants Los Angeles County Metropolitan Transportation Authority, County of Los Angeles, State of California, City of Los Angeles, and Does 1 to 25. The Complaint alleges that, while Plaintiff was a passenger in a municipal bus operated by Doe 1, "Plaintiff attempted to exit the open rear passenger doors of the SUBJECT BUS, when the doors, suddenly and without warning, closed on Plaintiff's body thereby causing injuries." (Compl., ¶ 19.)

Defendants County of Los Angeles, State of California, City of Los Angeles were dismissed without prejudice from this action at later dates.

On January 26, 2026, Defendant Roberto Arrayga was named as Doe 1.

On November 3, 2025, Plaintiff propounded Request for Production of Documents, Set One, ("RPDs") on Defendant Los Angeles County Metropolitan Transportation Authority (hereinafter,

“LACMTA”). (Soltanmoradi Decl., ¶ 4, Exh. 1.)

On January 15, 2026, LACMTA provided responses and a privilege log for withheld documents. (Soltanmoradi Decl., ¶ 5, Exh. 3.)

Plaintiff now moves to compel further responses to RPD Nos. 9, 13, 16, 18, 20, 21, 22, 23, 24, and 25.

No opposition has been filed as of July 20, 2026.

Legal Standard

Code of Civil Procedure section 2031.210 states the following:

“(a) The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling.”

(Code Civ. Proc., § 2031.210, subd. (a).)

On receipt of responses to a

demand for production of documents, the demanding party may move for an order compelling a further response if that party finds 1) a statement of compliance with the demand is incomplete, 2) the response is inadequate, incomplete, or evasive, or 3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Discussion

Plaintiff now moves to compel further responses to RPD Nos. 9, 13, 16, 18, 20, 21, and 22 to 25. The Court addresses each RPD organized by subject matter.

Documents Pertaining to the Incident

- RPD

No. 9 seeks "Any and ALL copies of traffic collision reports referring or relating to the INCIDENT."

- RPD

No. 18 seeks "Any and all DOCUMENTS prepared during the regular course of business as a result of the INCIDENT."

LACMTA objects on grounds that 1) the requested documents constitutes information of public employees that is privileged under Government Code section 6254, et seq., and 2) the requested documents are protected by the attorney-client privilege and work product doctrine. LACMTA directs Plaintiff to refer to certain documents in the privilege log, including the following: 1) Los Angeles County Metropolitan Transportation Authority Vehicle Accident and Incident Report, 2) Bus Instruction Investigation Report, 3) Department Investigation Review Report, 4) Supervisor's Accident Investigation Report, and 5) Metro Bus Incident Report - Customer Relations Department. Lastly, LACMTA asserts that discovery is ongoing and that it reserves the right to amend the response.

Plaintiff argues that such documents should be produced because there is no indication that any attorney involved in this litigation drafted the documents or that the documents contain any attorneys' thoughts or impressions. All documents were drafted by LACMTA's employees, not its attorneys. Further, the requested documents pertain to "Defendant's vehicle, Defendant driver's identity, causes of the incident, and other facts establishing the cause of the incident."

Upon inspection of LACMTA's privilege log, the Court finds that all documents were drafted by LACMTA employees and were transmitted to risk management and/or legal counsel. Each document lists attorney-client privilege, work product privilege, and/or Official Information (Gov. Code § 6254) as the privilege(s) asserted. The privilege log generally states the documents were either 1) prepared at the direction of counsel in anticipation of litigation, 2) created as a part of a confidential internal investigation conducted in anticipation of litigation, or 3) confidential communications between the clients and legal counsel.

"[T]he party claiming the attorney-client privilege as a bar to disclosure has the burden of showing that the communication sought to be suppressed falls within the parameters of the privilege." (Scripps Health v. Superior Court (2003) 109 Cal.App.4th 529, 533.) The Court acknowledges that, where an employer requires employees to prepare a report with the dominant purpose of eventual transmission to the employer's lawyers, the attorney-client privilege may protect the report from disclosure to opposing parties. (See *id.* at p. 534.) However, "[A] litigant cannot silence a witness by having him reveal his knowledge to the litigant's attorney. . . . [T]he forwarding to counsel of non-privileged records, in the guise of reports, will not create a privilege with respect to such records and their contents where none existed theretofore." (San Francisco Unified School Dist. v. Superior Court for City and County of San Francisco (1961) 55 Cal.2d 451, 457, internal quotations and citations omitted.)

No opposition has been filed. The Court thus finds that LACMTA has failed to meet its burden in demonstrating that any privilege applies. The privilege log does not provide a sufficient factual description of each document such that the Court can determine whether the document is privileged. (See *Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 292 ["The purpose of a 'privilege log' is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production. [Citation.] The purpose of providing a specific factual description of documents is to permit a judicial evaluation of the claim of privilege."].) For example, the privilege log does not 1) briefly describe the contents of the reports, and 2) dates the documents were transmitted to legal counsel. All of the reports were prepared by LACMTA employees on or near the date of the subject incident. Especially as to those documents that were not prepared at the direction of counsel, the

Court is not persuaded at this time that the documents were created with the primary purpose of preparing for litigation. Further, the Court is unable to determine from the privilege log whether the reports contain privileged employee information under Government Code section 6254, et seq. The Court thus finds further responses are warranted.

Accordingly, the Motion to Compel
Further Responses is GRANTED as to Nos. 9 and 18.

Driver's License

- RPD

No. 13 seeks "A copy of the SUBJECT BUS' driver's driver's license."

LACMTA responded the following: "Not
applicable as the Responding Party is an entity."

Plaintiff argues that the
information is well within LACMTA's control as the bus driver is an employee of
LACMTA and was acting within the course and scope of his employment at the time
of the incident. Further, the request is relevant to determine identity of the
driver.

The Court finds that LACMTA is
required to respond as completely as possible. If LACMTA is unable to respond
because it is not aware of the driver's identity, it must state so and explain
why. Plaintiff is unable to determine the identity of the driver and thus,
Plaintiff is unable to request the driver's license by going to the driver
directly.

Accordingly, the Motion to Compel
Further Responses is GRANTED as to No. 13.

Bus Maintenance

- RPD

No. 21 seeks "Any and all maintenance records for the SUBJECT BUS for the
time period of February 1, 2024 to February 1, 2025."

- RPD

No. 22 seeks "Any and all repair records for the SUBJECT BUS for the time period of February 1, 2024 to February 1, 2025."

- RPD

No. 23 seeks "Any and all maintenance records for the SUBJECT BUS' doors for the time period of February 1, 2024 to February 1, 2025."

- RPD

No. 24 seeks "Any and all repair records for the SUBJECT BUS' doors for the time period of February 1, 2024 to February 1, 2025."

LACMTA objects on grounds that 1) the requested documents constitute information of public employees that is privileged under Government Code section 6254, et seq., 2) production would necessitate the preparation of a compilation, abstract, audit or summary from documents in defendant's possession, and 3) the requested documents are protected by the attorney-client privilege and work product doctrine. Lastly, LACMTA responds that there is no responsive information at this time despite its diligent search and a reasonable inquiry, discovery is ongoing, and it will serve supplemental responses if more information is discovered.

Plaintiff argues that, if a compilation of documents is necessary to respond to the RPDs, such compilation would not be burdensome for LACMTA. The RPDs are limited to a tailored timeframe. The documents are necessary for Plaintiff to evaluate liability and causation of the incident.

The Court finds that LACMTA's privilege objections are inapplicable for reasons stated above. As to LACMTA's objection that the RPDs would necessitate the preparation of a compilation, abstract, audit or summary from documents in defendant's possession, the Court finds that language refers to Code of Civil Procedure section 2030.230 [pertaining to a responding party's option to specify writings from which the answer to an interrogatory may be derived, instead of requiring the responding party to make a compilation]. The fact that LACMTA might need to compile certain maintenance records is alone an insufficient objection. LACMTA has demonstrated no undue burden that outweighs Plaintiff's need for discovery. (See Code Civ. Proc., §§ 2017.020, 2031.060.)

Further, if LACMTA has no

responsive documents because there were no repairs to the subject bus, it should state so.

Accordingly, the Motion to Compel Further Responses is GRANTED as to Nos. 21 to 24.

Communications

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RPD No. 16 seeks "Any and all DOCUMENTS relating to any statements anyone has made regarding the INCIDENT."

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RPD No. 20 seeks "Any and all witness statements taken on behalf of any party concerning the INCIDENT."

- RPD

No. 25 seeks "Any and all DOCUMENTS relating to YOUR communication(s) with any and all PERSONS at the scene of the INCIDENT."

LACMTA objects on grounds that 1) the requested documents constitute information of public employees that is privileged under Government Code section 6254, et seq., and 2) the requested documents are protected by the attorney-client privilege and work product doctrine. In response to RPD Nos. 16 and 25, LACMTA directs Plaintiff to refer to certain documents in the privilege log, including the following: Metro Bus Incident Report - Customer Relations Department. Lastly, LACMTA asserts that discovery is ongoing and that it reserves the right to amend the response.

Plaintiff makes the same arguments as she did in support of RPD Nos. 9 and 16.

The Court finds that LACMTA's privilege objections are inapplicable for reasons stated above. The privilege log indicates that the basis for privilege for the "Metro Bus Incident Report - Customer Relations Department" document is the following: "Confidential communication transmitted to counsel for legal review and advice regarding potential claims." As previously discussed, based on the information before it, the Court is not persuaded that this document was created for the primary purpose of preparing for litigation.

The Court notes that witness statements from attorney-directed interviews are entitled to qualified work product protection, at least, and are only entitled to absolute protection if their disclosure would reveal the attorney's mental processes—i.e., when the witness statements are “inextricably intertwined” with counsel's comments or notes about the witness or the case. (See *Coito v. Superior Court* (2012) 54 Cal.4th 480, 494-497.)

Accordingly, the Motion to Compel Further Responses is GRANTED as to Nos. 16, 20, and 25.

Conclusion

Based on the foregoing, Plaintiff's Motion to Compel Further Responses to Requests for Production, Set One, is GRANTED. LACMTA is ordered to produce further responses within 20 days of this order. The parties are encouraged to meet and confer regarding the issues in this Motion.